THE POLICE COMMISSIONER
CITY OF NEW YORK

MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM THE DISCIPLINARY SYSTEM PENALTY GUIDELINES

Re: PODS Case No. C-039850 and PODS Case No. C-039851 regarding Police Officer Diona Velez, Tax No. 971722 and Police Officer Crisbel Lopez, Tax No. 969177

Date: October 15, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Diona Velez and Police Officer Lopez spoke discourteously to an individual. CCRB has recommended that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the recommended downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Police Officer Velez and Police Officer Lopez will each receive formalized training, as recommended by CCRB.

Jessica S. Tisch
Police Commissioner

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ZOHRAN K. MAMDANI
MAYOR

JENNIFER JONES AUSTIN
CHAIR

MEMORANDUM

TO: Police Commissioner, New York Police Department

FROM: Executive Director, Civilian Complaint Review Board

SUBJECT: Substantiated allegations for CCRB case number 202504414 involving:
PO Yulissa Santana Rosario, tax registry number 975800, 043 PCT
PO Jessette Adorno, tax registry number 966418, 043 PCT
SGT Omar Bhuiyan, tax registry number 957380, 043 PCT
PO Gabriel Valdez, tax registry number 959328, 043 PCT
PO Diona Velez, tax registry number 971722, 043 PCT
PO Crisbel Lopez, tax registry number 969177, 043 PCT

DATE: September 16, 2026

I: OVERVIEW

On September 16, 2026, panel 9B-2026 of the Civilian Complaint Review Board met and reviewed the above-referenced case. The details of the complaint, the allegations and the panel's findings are summarized below.

The 18 Month statute of limitations applicable to this case expires on 10-14-2026.

II: SUMMARY OF FACTS & INVESTIGATOR RECOMMENDATIONS

On April 14, 2025, [redacted] filed this complaint over the phone with the Internal Affairs Bureau (IAB). On May 8, 2025, the CCRB received this complaint. [redacted] Ms. [redacted] boyfriend, was identified as an additional victim in this case. On April 14, 2025, at approximately 11:15 a.m., [redacted] in the Bronx, Ms. [redacted] and Mr. [redacted] were having a verbal dispute inside of his parked vehicle. Ms. [redacted] called 911 for police assistance to calm down. Police Officer Yulissa Santana Rosario, and Police Officer Diona Velez, of the 43rd Precinct, responded to the 911 call. As PO Velez spoke with Mr. [redacted] while he sat in the driver's seat of his vehicle, Ms. [redacted] entered the front passenger seat of the vehicle. PO Santana Rosario and PO Velez asked Ms. [redacted] to exit the vehicle multiple times, to which she refused. An unidentified officer allegedly threatened to arrest Ms. [redacted] and stated, "You don't want your kids to get taken" (Allegations A and B: Abuse of Authority, Unfounded). PO Velez and PO Santana Rosario pulled Ms. [redacted] arms to pull her out of the vehicle (Allegations C and D: Force, Within NYPD Guidelines). During this time, PO Velez allegedly pulled Ms. [redacted] shirt, ripping it at the collar (Allegation E: Abuse of Authority, Unable to Determine). PO Velez told Ms. [redacted] "What are you, crazy?" and said, "You're acting crazy" (Allegation F: Discourtesy Word, Substantiated) (Allegation G: Offensive Language Disability, Substantiated). Mr. [redacted] observed PO Velez rubbing against the left passenger side of the vehicle when she was trying to pull Ms. [redacted] out of the vehicle, which allegedly resulted in multiple scratches on that area of the vehicle (Allegation H: Abuse of Authority, Unable to Determine).Police Officer Crisbel Lopez and Police Officer Jessette Adorno, of the 43rd Precinct, assisted in removing Ms. [redacted] from the vehicle. PO Velez, PO Lopez, and PO

Adorno, punched Ms. [redacted] in her back (Allegations I-K: Force, Within NYPD Guidelines). PO Lopez told Ms. [redacted] "Let her go. You crazy?" (Allegation L: Discourtesy Word, Substantiated) (Allegation M: Offensive Language Disability, Substantiated). Sergeant Omar Bhuiyan and Police Officer Gabriel Valdez, of the 43rd Precinct, assisted with removing Ms. [redacted] from the vehicle. Sgt. Bhuiyan and PO Valdez pulled Ms. [redacted] out of the vehicle and placed her on the ground (Allegations N and O: Force, Within NYPD Guidelines). PO Valdez handcuffed Ms. [redacted] and held her hands up her back, resulting in pain to Ms. [redacted] shoulders (Allegation P: Force, Within NYPD Guidelines). Ms. [redacted] was forcibly removed to the hospital (Allegation Q: Abuse of Authority, Within NYPD Guidelines). Ms. [redacted] and Mr. [redacted] were not arrested or issued summonses during this incident. The investigation received 15 body-worn camera recordings from multiple officers of the 43rd Precinct. [Board Review 01]

III: ALLEGATION DISPOSITIONS

Note: When the Board substantiates an allegation of misconduct it may also choose to identify one or more mitigating/aggravating factors related to the misconduct. However, the fact the Board found a factor, or factors, present does not indicate the weight assigned to each factor. That can only be determined by whether the Board decided to choose the presumptive, mitigated, or aggravated level of discipline.

A)	Abuse of Authority: An officer threatened to arrest [redacted]	Unfounded
B)	Abuse of Authority: An officer threatened to notify Administration for Children's Services.	Unfounded
C)	Force: Police Officer Diona Velez used physical force against [redacted]	Within NYPD Guidelines
D)	Force: Police Officer Yulissa Santana Rosario used physical force against [redacted]	Within NYPD Guidelines
E)	Abuse of Authority: Police Officer Diona Velez damaged [redacted] property.	Unable to Determine
F)	Discourtesy: Police Officer Diona Velez spoke discourteously to [redacted] Mitigating Reasons: Totality of circumstances Aggravating Reasons: NA	Substantiated - Mitigating
G)	Offensive Language: Police Officer Diona Velez spoke offensively regarding [redacted] actual or perceived disability. Mitigating Reasons: Totality of circumstances Aggravating Reasons: NA	Substantiated - Mitigating
H)	Abuse of Authority: Police Officer Diona Velez damaged [redacted] property.	Unable to Determine

I)	Force: Police Officer Diona Velez used physical force against [redacted]	Within NYPD Guidelines
J)	Force: Police Officer Crisbel Lopez used physical force against [redacted]	Within NYPD Guidelines
K)	Force: Police Officer Jessette Adorno used physical force against [redacted]	Within NYPD Guidelines
L)	Discourtesy: Police Officer Crisbel Lopez spoke discourteously to [redacted] Mitigating Reasons: Totality of circumstances Aggravating Reasons: NA	Substantiated - Mitigating
M)	Offensive Language: Police Officer Crisbel Lopez spoke offensively regarding [redacted] actual or perceived disability. Mitigating Reasons: Totality of circumstances Aggravating Reasons: NA	Substantiated - Mitigating
N)	Force: Sergeant Omar Bhuiyan used physical force against [redacted]	Within NYPD Guidelines
O)	Force: Police Officer Gabriel Valdez used physical force against [redacted]	Within NYPD Guidelines
P)	Force: Police Officer Gabriel Valdez used physical force against [redacted]	Within NYPD Guidelines
Q)	Abuse of Authority: Police Officer Diona Velez forcibly removed [redacted] to the hospital.	Within NYPD Guidelines

IV: BOARD DISCIPLINE RECOMMENDATIONS

PO Crisbel Lopez	**Substantiated (Formalized Training)** *Police Officer Crisbel Lopez: Matrix Deviation Reasons: Allegation M:The panel deviated to Formalized Training for MOS Lopez, stating professional development as a better means of remediation rather than punishment.*
PO Diona Velez	**Substantiated (Formalized Training)** *Police Officer Diona Velez: Matrix Deviation Reasons: Allegation G: The panel deviated to Formalized Training for MOS Velez, stating professional development as a better means of remediation rather than punishment.*

Submitted for your attention.

Sincerely,



Jonathan Darche
Executive Director

c: Eshwarie Mahadeo, Case Management Director